

26NNCV01482 26NNCV01482

County: los-angeles

Division: Civil Law and Motion

Department: T

Hearing date: 2026-09-08

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=ALH%2CT%2C09%2F08%2F2026

Source SHA-256: 3f7c5fed5ffa7485593e5224ea4194dbdfefea9dac0489ec351939f2ddb60819

Case Number: 26NNCV01482 Hearing Date: September 8, 2026 Dept: T

Hearing Date: September 8, 2026

Case Name: Gevorg Nazaryan vs. Arman Baghumyan, et al.

Case No.: 26NNCV01482

Motion: Motion to Strike Portions of Plaintiff's Complaint

Moving Party: Defendant Lianna Hovhannisyan

Responding Party: Plaintiff Gevorg Nazaryan

Tentative Ruling: Grant

BACKGROUND

On March 2, 2026, Plaintiff Gevorg Nazaryan ("Plaintiff") filed a complaint for damages against Defendants Arman Baghumyan ("Arman"), Lianna Hovhannisyan ("Defendant"), Artur Baghumyan, a minor by and through his guardian ad litem, Arman and Defendant, ("Artur"), and Does 1 to 10, alleging the following causes of action: (1) civil assault; (2) civil battery; (3) civil conspiracy; (4) aiding and abetting; (5) concerned action; (6) negligent supervision of a minor; (7) intentional infliction of emotional distress ("IIED"); and (8) negligent infliction of emotional distress ("NIED").

Defendant now moves to strike all punitive damages allegations from the complaint that are alleged against her.

Plaintiff opposes, and Defendant replies.

MOVING PARTY POSITION

Defendant argues that Plaintiff's punitive damages claim against her is unsupported by the factual allegation in the complaint, as Defendant cannot be liable for punitive damages based on her son Artur's alleged tortious conduct, and as Defendant's

own alleged conduct following the subject incident is not shown by the complaint to be malicious, oppressive, or fraudulent. There are also no factual allegations establishing that Defendant acted in willful or conscious disregard of Plaintiff's right or safety.

OPPOSITION

Plaintiff contends that the alleged fact in the complaint support the availability of punitive damages against Defendant, as she allegedly concealed Arman and Artur after the subject incident took place. In doing so, Defendant acted maliciously and ratified Artur's alleged tortious conduct. In addition, Defendant consciously disregarded the safety of others by failing to remedy Artur's conduct through the provision of aid to him once she had learned of the subject incident.

Plaintiff also seeks leave to amend if the motion is granted.

REPLY

Defendant initially responds that Plaintiff's reference to extrinsic evidence is improper, as the asserted facts regarding Artur's training as a fighter are not found in the complaint and that the complaint only alleges that Defendant learned of the subject incident only after it took place and failed to notify authorities, encourage Artur and Arman to turn themselves in, and concealed their identities.

Defendant also argues that leave to amend should not be denied as the defects are incurable.

ANALYSIS

I. Legal Standard

A. Motion to Strike

California law authorizes a party's motion to strike matter from an opposing party's pleading if it is irrelevant, false, or improper. (Code Civ. Proc. §§ 435, 436(a).) Motions may also target pleadings or parts of pleadings which are not filed or drawn in conformity with applicable laws, rules or orders. (Code Civ. Proc. § 436(b).) A motion to strike is used to address defects that appear on the face of a pleading or from judicially noticed matter but that are not grounds for a demurrer. (Pierson v Sharp Memorial Hospital (1989) 216 Cal.App.3d 340, 342; see, also, City & County of San Francisco v Strahlendorf (1992) 7 Cal.App.4th 1911, 1913 [motion may not be based on a party's declaration or factual representations made by counsel in the motion papers].) In particular, a motion to strike can be used to attack the entire pleading or any part thereof – in other words, a motion to strike may target single words or phrases, unlike demurrers. (Warren v. Atchison, Topeka & Santa Fe Railway Co. (1971) 19 Cal.App.3d 24, 40.)

The Code of Civil Procedure also authorizes the Court to act on its own initiative to strike matters, empowering the Court to enter orders striking matter "at any time in its discretion, and upon terms it deems proper." (Code Civ. Proc. § 436.)

1. Punitive Damages

Punitive damages may be imposed where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice. (Civ. Code, § 3294, subd. (a).) "Malice" is conduct intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on with a willful and conscious disregard of the rights or safety of others. (Civ. Code, § 3294, subd. (c)(1).) "Punitive damages are proper only when the tortious conduct rises to levels of extreme

indifference to the plaintiff's rights, a level which decent citizens should not have to tolerate.' [Citation.]" (Lackner v. North (2006) 135 Cal.App.4th 1188, 1210.)

"As amended to include [despicable], the [Civil Code section 3294] plainly indicates that absent an intent to injure the plaintiff, 'malice' requires more than a 'willful and conscious' disregard of the plaintiffs' interests. The additional component of 'despicable conduct' must be found." (College Hospital Inc. v. Superior Court (1994) 8 Cal.4th 704, 725.) The statute's reference to despicable conduct represents a "new substantive limitation on punitive damage awards." (Ibid.) Despicable conduct is "conduct which is so vile, base, contemptible, miserable, wretched or loathsome that it would be looked down upon and despised by ordinary decent people. Such conduct has been described as 'having the character of outrage frequently associated with crime.' [Citation.]" (Tomaselli v. Transamerica Ins. Co. (1994) 25 Cal.App.4th 1269, 1287.) And there also "must be evidence that defendant acted with knowledge of the probable dangerous consequences to plaintiff's interests and deliberately failed to avoid these consequences." (Flyer's Body Shop Profit Sharing Plan v. Tigor Title Ins. Co. (1986) 185 Cal.App.3d 1149, 1155.)

A motion to strike punitive damages is properly granted where a plaintiff fails to state a prima facie claim for punitive damages, including well-pleaded allegations that defendant is guilty of oppression, fraud or malice. (Turman v. Turning Point of Cent. California, Inc. (2010) 191 Cal.App.4th 53, 63.) "Mere negligence, even gross negligence, is not sufficient to justify such an award" for punitive damages. (Kendall Yacht Corp. v. United California Bank (1975) 50 Cal.App.3d 949, 958.) Moreover, conclusory allegations are not sufficient to support a claim for punitive damages. (Brousseau v. Jarrett (1977) 73 Cal.App.3d 864, 872.) Lastly, "[t]he mere allegation an intentional tort was committed is not sufficient to warrant an award of punitive damages. Not only must there be circumstances of oppression, fraud, or malice, but facts must be alleged in the pleading to support such a claim." (Grieves v. Superior Court (1984) 157 Cal.App.3d 159, 166.)

II. Meet and Confer

Based on the declaration of Defendant's counsel Jasmine H. Ng, it does not appear that the parties met and conferred by telephone, video, or in person. (Ng Decl. ¶¶ 2–5.) Nevertheless, "[a] determination by the court that the meet and confer process was insufficient shall not be grounds to grant or deny the motion to strike." (Code Civ. Proc. § 435.5, subd. (a)(4).)

III. Discussion

Defendant seeks to strike punitive damages allegations from the complaint, as the alleged facts underlying her alleged misconduct do not constitute circumstances of malice, oppression, or fraud to support a claim for punitive damages against her.

The following facts are alleged in the complaint. On or about March 6, 2024, at or around 4:30 pm, Plaintiff was driving southbound in the number one lane on Verdugo Road, coming from Colorado Street, when Arman and his son Artur, who were in a black sedan, began honking at Plaintiff from behind his truck. (Compl. ¶ 12.) After following Plaintiff to his home, Arman and Artur exited the black sedan and asked Plaintiff in Armenian why he had cursed at them, to which Plaintiff responded that he had not cursed at them. (Ibid.) Plaintiff tried to deescalate the situation by asking Arman and Artur to leave, and Arman responded to Plaintiff with the following threat in Armenian: "If you step back, you are dead." (Ibid.) Suddenly, after the threats continued, and as allegedly depicted by Plaintiff's home camera video footage, Artur grabbed the back of Plaintiff's collar and struck Plaintiff's face once with his right elbow, causing Plaintiff to fall backwards onto the ground. (Id. ¶¶ 12–13.) As Plaintiff fell, Artur also punched Plaintiff's face with his right closed fist. (Id. ¶ 13.) Plaintiff landed on his back, and the back of his head hit the edge of the cemented sidewalk, allegedly causing him to lose consciousness. (Ibid.) Arman and Artur then slowly walked back to their sedan while looking back at Plaintiff lying on the floor in a pool of blood, without rendering any aid to him, before fleeing the scene of the incident. (Ibid.) Once Plaintiff regained consciousness, he allegedly realized that blood was dripping down his face and started walking towards his home. (Ibid.) Plaintiff alleges that, shortly following the incident, the Glendale Police Department was contacted and Plaintiff was rushed to the hospital where he was treated for his injuries, including several different stitches to his face, and was informed that he will require surgery of his left eye and that his vision may never return to what it used to be. (Id. ¶ 15.)

At the time of the subject incident, Plaintiff allegedly did not the identities of Arman and Artur because they had fled the scene. (Compl. ¶ 14.) Following the incident, Arman and Artur returned to the home they inhabited with Defendant. (Id. ¶ 16.) They allegedly informed her of their actions towards Plaintiff and about fleeing the scene of the incident. (Ibid.) Plaintiff further alleges that Defendant “failed to intervene, failed to contact 911 and/or to supervise and turn Artur Baghumyan, a minor, into the police, and in fact took steps to conceal their actions and attempted to conceal her son Artur Bahumyan’s identity and the identity of her husband Arman Baghumyan.” (Ibid.) Approximately a month and a half after the subject incident, following the filing of a police report and conducting of an investigation into the incident, the police investigation determined that Arman and Artur were the individuals who had harmed Plaintiff. (Id. ¶ 17.)

At the outset, to the extent that Plaintiff relies on the alleged willful misconduct of Artur, Defendant’s minor son, as the basis for his punitive damages claim against her, Civil Code section 1714.1 expressly limits Defendant’s liability for Artur’s conduct as follows:

Any act of willful misconduct of a minor that results in injury or death to another person or in any injury to the property of another shall be imputed to the parent or guardian having custody and control of the minor for all purposes of civil damages, and the parent or guardian having custody and control shall be jointly and severally liable with the minor for any damages resulting from the willful misconduct.

Subject to the provisions of subdivision (c), the joint and several liability of the parent or guardian having custody and control of a minor under this subdivision shall not exceed twenty-five thousand dollars (\$25,000) for each tort of the minor, and in the case of injury to a person, imputed liability shall be further limited to medical, dental and hospital expenses incurred by the injured person, not to exceed twenty-five thousand dollars (\$25,000). The liability imposed by this section is in addition to any liability now imposed by law.

(Civ. Code § 1714.1, subd. (a).) “The maximum liability imposed by this section is the maximum liability authorized under this section at the time that the act of willful misconduct by a minor was committed.” (Civ. Code § 1714.1, subd. (d).) As Defendant’s liability for Artur’s misconduct is expressly limited by Section 1741.1(a), the Court notes that any claim for punitive damages against Defendant must arise from her own alleged misconduct.

Accordingly, in liberally construing the pleadings with a view toward substantial justice, the Court finds that the complaint failed to set forth specific factual allegations showing that Defendant’s conduct was oppressive, fraudulent, or malicious. (Today’s IV, Inc. v. Los Angeles County Metropolitan Transportation Authority (2022) 83 Cal.App.5th 1137, 1193 [“In addition to the requirement that the operative complaint set forth the elements as stated in section 3294, it must include specific factual allegations showing that defendant’s conduct was oppressive, fraudulent, or malicious to support a claim for punitive damages.”].) As alleged in the complaint, Defendant was not present at the scene of the incident and only learned of the incident following its occurrence on March 6, 2024. (Compl. ¶¶ 12–13, 16.) Though Plaintiff argues that Defendant’s alleged concealment of the identities of her husband and son, as well as her alleged failure to report them to the authorities and failure to secure aid for Plaintiff upon learning of the incident, supports his punitive damages claim against her, these allegations are insufficient to show that Defendant’s conduct was despicable under Section 3294. Furthermore, to the extent that Plaintiff argues that Defendant “knew of the threats made against Plaintiff, knew of Artur’s high propensity to cause severe and permanent damage as a trained fighter, knew of the severe injuries caused by Artur against Plaintiff, knowingly failed to remedy the wrongful acts by Artur and Baghumyan, and took active steps to conceal the identities of Defendants, which she knew would result in further severe physical and psychological harm to Plaintiff,” none of these asserted facts regarding Defendant’s knowledge appear to be set forth in the complaint. (See generally Compl.)

Therefore, as Plaintiff’s complaint failed to include specific factual allegations showing that Defendant’s conduct was malicious, the motion to strike is granted. Given that Plaintiff has failed to explain what additional facts may be alleged to support the claim for exemplary damages, the motion is granted without leave to amend.

RULING

Defendant Lianna Hovhannisyan’s Motion to Strike Portions of Plaintiff’s Complaint is GRANTED without leave to amend.